30.11.2024

LEGAL NOTICE

To

1. Mr.I. John Bosco,
   S/o.late.Irudhayasamy,
   No.1653, Tiruchy Road, Sungam,
   Coimbatore – 641 018.

2. Mr.I. Michael Xavier
   S/o.late.Irudhayasamy,
   No.36-1, Parvathi Puram,
   Jagirrettipatti,
   Salem – 636 302

Sirs,

Under instructions from my clients (1) Mr.I.Aloysius James, S/o.late.Irudhayasamy, residing at No.17/23, Dr.Munusamy Nagar, Ramanathapuram, Coimbatore – 641 045 and (2) Mr.I.Antony Julian, S/o.late.Irudhayasamy residing at No.15, Allwyn Nagar, Sungam Bypass Road, Coimbatore – 641 045, I issue the following notice to you

That the property morefully described hereunder measuring an extent of 1145 Sq. Ft. along with larger extent originally belonged to one Gnanaprakasha Gounder being Grand Father of my clients absolutely. Whileso, the said Gnanaprakasha Gounder executed a Deed of Will dated 01.05.1953 by bequeathing the entire property to his wife Ubakara Mariyammal with absolute right out of love and affection. The said Will was executed in a sound state of mind and body which was also subsequently probated in OP No.72/1957 on the file of Hon'ble District Munsiff Court, Coimbatore and thereby the said Ubakara Mariyammal derived absolute title over the entire property after death of her husband.

Subsequently, she being absolute owner sold an extent of 1924 sq ft. to one Mr.Abdul Rahiman Hajee and his wife Aisha under a Sale Deed dated 11.12.1987 registered as Doc No.5457/1987 at JSRO, Coimbatore by retaining remaining extent 1145 Sq. Ft as morefully described hereunder. My clients also state that the said Ubakara Mariyammal had three sons by name Gurusamy, Paulraj and my clients' father Irudhayasamy as her legal heirs and whileso, she settled the sale price obtained by her from purchaser Abdul Rahiman Hajee and his wife Aisha towards sale of 1924 Sq.ft as referred above to her elder sons Gurusamy and Paulraj equally. Whereas, the said Ubakara Mariyammal assured to give the portion retained by her to her younger son namely Irudhayasamy as he was not provide with any share out of aforesaid sale consideration. My clients state that the elder sons of late.Ubakara Mariyammal as referred viz., Gurusamy and Paulraj above all well aware of the same and also agreed to allot the property mentioned below towards share of my clients' father Irudhayasamy and in pursuance of her intention, she executed a Will cum Settlement Deed dated 07.10.1987 whereby she had given the remaining extent of 1145 Sq. Ft. to my clients' father Irithiyasamy with absolute right and thus the property described below belongs my clients' father as referred above.

At this juncture, my clients' father Irudhayasamy died intestate on 24.02.2016 by leaving behind my clients, the addressees 1 and 2 as four sons along with his wife M.Rose Mary to succeed the said property as his legal heirs. Whileso, the 1st mentioned of you being brother of my clients as well as 2nd mentioned of you, has been occupying the said property for the purpose of running a shop in doing business of money exchange. My clients further state that you have been running business since 2015 by assuring my clients to provide money for such permissive occupation to them pertaining to their half share. However, after getting into possession you have paid a portion for sometime and thereafter failed to pay it despite repeated demands. My clients further state that at present the premises under your occupation would fetch a sum of Rs.40,000/- as monthly rent and thereby you are liable to pay a sum of Rs.20,000/- per month for use and occupation of half

share of my clients' property. Not only that at present my clients are not willing to share the joint possession with you anymore and thereby you are hereby demanded to vacate your shop and hand over the half portion towards my clients' share by amicable means which my clients are also ready. In fact, despite several request, you have been postponing the same under some pretext or other for which you are not entitled.

Therefore, you are hereby called upon to express your willingness to divide the said property into four equal shares and to allot two such shares to my clients within 10 days after receipt of this notice failing, which please take notice that my clients will have no other option except to approach the court of law for necessary relief of partition by holding you liable for costs and consequences.

ADVOCATE